

00229; C24-01939; P25-00516; and P25-00495) which was set to take place on October 15, 2025. The Probate Court in a minute order dated September 25, 2025, continued the October 15, 2025, Motion to Set Aside the Appointment of Special Administrator to December 16, 2025.

At the November 03, 2025, hearing, this Court continued this hearing to January 12, 2026, to have the benefit of the ruling for the December 16, 2025, Motion to Set Aside the Appointment of Special Administrator.

On December 16, 2025, the Probate Court filed a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

Analysis

This case is simple interpleader matter where Plaintiff, a disinterested party who is a holder of Decedent Nickolai Popov's money market account, is seeking to be discharged from liability for Mr. Popov's account which is the subject of multiple adverse claims and deposit the funds with the Court to allow the adverse parties to resolve their claims regarding the subject account.

The Court does find any compelling reason to deny or continue this matter as requested by defendant Alexander Popov's Objection to Plaintiff's Motion for Substitution filed on July 3, 2025. Any ongoing dispute over the appropriate administrator of the decedent's estate may be relevant to whether and when the Court makes further determinations regarding the disposition of the interpleaded funds. However, that issue does not mitigate in favor of denying or delaying the requested change in the named parties.

Conclusion

Accordingly, **the Court GRANTS Plaintiff Umpqua Bank's motion to substitute Michael Popov, in his capacity as Special Administrator of the estate of Nickolai Popov, in place of decedent Defendant Nikolai Popov. The moving party to submit the order after hearing in compliance with CRC 3.1312.**

**6. 9:00 AM CASE NUMBER: C25-01243
CASE NAME: PATELCO CREDIT UNION VS. GREGORY M CLIFTON JR
HEARING ON DEMURRER TO: 2ND AMENDED CROSS-COMPLAINT
FILED BY: PATELCO CREDIT UNION
TENTATIVE RULING:**

The demurrer filed by cross-defendants is **SUSTAINED WITH LEAVE TO AMEND**. The motion to strike is **DENIED AS MOOT**. Cross-complainant may file and serve an a third amended cross-complaint on or before March 26, 2026.

Background

Patelco Credit Union initiated this action in May of 2025 in connection with overdrafts made by Gregory M. Clifton Jr, who is a member of Patelco. Patelco alleges Clifton made overdrafts during a period it was navigating a ransomware attack, thereby taking advantage of Patelco's need to shut

down some of its databases. (Complaint filed May 1, 2025, hereinafter “Complaint,” ¶¶1-4.) In response to the complaint, Clifton filed a cross-complaint against Barry A. Smith, Patelco’s attorney, in conjunction with his answer. Three days later, prior to any response from Patelco, Clifton filed a First Amended Cross-Complaint. After a demurrer to the First Amended Cross-Complaint was sustained by Judge Devine in September 2025 with leave to amend, Clifton filed a Second Amended Cross-Complaint (“SACC”) naming both Smith and Patelco Credit Union as cross-defendants.

Clifton’s Second Amended Cross-Complaint, at issue here, alleges Smith, as an agent of Patelco, violated the federal Fair Debt Collection Practices Act (the “FDCPA,” 15 U.S.C. § 1692 *et seq.*) and the California Rosenthal Fair Debt Collection Practices Act (the “Rosenthal Act,” Civ. Code, § 1788 *et seq.*). After the demurrer to Clifton’s three causes of action in the previous cross-complaint, the SACC now contains ten causes of action, apparently all against both cross-defendants (though that is not entirely clear).

After efforts to meet and confer (see Declaration of Adeline Tungate in Support of Demurrer), cross-defendants demur pursuant to Code of Civil Procedure, § 430.10 (e), arguing that the SACC fails to state sufficient facts to constitute a cause of action. Cross-defendants also move to strike punitive damage allegations in the SACC. (SACC, 10:23; 11:10-12.)

Clifton opposes the demurrer, arguing the demurrer is not properly before the Court due to “discrepancies” concerning the address of opposing counsel. Clifton has filed three declarations concerning said discrepancies. He does not contend he lacked notice of the demurrer, or that he was unable to complete service of the SACC. The Court considers the papers on their merits and, to avoid confusion, clarifies that Clifton may rely on the “Change of Address” filed by cross-defendants’ attorneys on August 12, 2025 for purposes of serving cross-defendants.

Clifton has not opposed the motion to strike.

Standard on Demurrer

A demurrer tests the sufficiency of a complaint by raising questions of law. (*Wilner v. Sunset Life Ins. Co.* (2000) 78 Cal.App.4th 952, 958.) In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Ibid.*) The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (*Ibid.*; Code Civ. Proc., § 452.)

Demurrer Discussion

A. Claims Against Patelco

The demurrer contends Patelco is not a “debt collector” subject to the FDCPA and therefore all the claims asserted against it fail. In this portion of the demurrer, cross-defendants omit any mention of the Rosenthal Act, which is also pleaded in the SACC. Cross-defendants argue the FDCPA requires a debt collector to be a third party and does not include a creditor collecting on its own behalf. Cross-defendants, on this point, are correct.

The case cited by cross-defendants on this point, however, makes an important distinction

between the FDCPA and the Rosenthal Act. In *Davidson v. Seterus, Inc.* (2018) 21 Cal.App.5th 283, the court points out that, while “[t]he FDCPA specifically excludes [the consumer's creditors] from the definition of ‘debt collector,’ in contrast to the Rosenthal Act, ‘the Rosenthal Act does not so limit the definition of ‘debt collector.’” (*Davidson, supra*, 21 Cal.App.5th at 303.) The court went onto reverse the trial court’s sustaining of a demurrer to a complaint because the definition of a debt collector under the Rosenthal Act is broader than under the FDCPA. (*Id.* at 304.)

Pursuant to Civil Code section 1788.2, subdivision (c), the term “debt collector” means “any person who, in the ordinary course of business, regularly, on behalf of that person or others, engages in debt collection.” Further, pursuant to subdivision (g), the term “person” includes “a natural person, partnership, corporation, limited liability company, trust, estate, cooperative, association, or other similar entity.” Patelco fails to demonstrate how it does not fall within the broader definition in the Rosenthal Act, which the SACC specifically invokes.

Still, nowhere in the complaint is a cause of action under the Rosenthal Act stated separate and apart from the Act’s invocation of the federal FDCPA. The only references to the Rosenthal Act are in connection with its one section that invokes the federal FDCPA. Accordingly, the demurrer by Patelco is sustained on the basis that, pursuant to the FDCPA, Patelco is not a debt collector.

B. First Cause of Action (“Misstatement of Dispute Rights”)

Clifton alleges that Smith violated 15 U.S.C. § 1692e (10), which prohibits a debt collector from using a “false representation or deceptive means to collect or attempt to collect any debt or to obtain information concerning a consumer.” Clifton alleges that the January 21, 2025 debt collection letter was misleading because it stated, “Call or write to us by March 3, 2025, to dispute all or part of the debt. If you do not, we will assume the Credit Union's information is correct.” The statement, according to the SACC, is misleading because (1) it incorrectly instructed that the debt could be disputed by telephone despite a written dispute being necessary and (2) it extended the dispute deadline forty-one (41) days instead of the thirty (30) days mandated by statute.

Smith’s initial communication, in fact, stated “Call or write to us [...] [¶] If you write to us by March 3, 2025, we must stop collection [...]”, emphasis added.) (SACC, Exhibit A.)

Cross-defendants demur, arguing that plaintiff can provide no authority for the idea that giving more time is a violation of the FDCPA. Plaintiff’s opposition, without providing the specific page numbers, cites *Camacho v. Bridgeport Fin., Inc.* (9th Cir. 2005) 430 F.3d 1078 and *Swanson v. Southern Or. Credit Serv.* (9th Cir. 1988) 869 F.2d 1222. *Swanson*, which dealt with an Oregon debt collection law, held the debt collector gave a *shorter* response period that required by statute, not longer.

In the ruling sustaining the previous demurrer, the Court noted *Camacho* supports the *accuracy* of Smith’s statement. In *Camacho* the debtor challenged a debt collector’s initial notice claiming it misrepresented her rights by stating that the dispute had to be in writing, contrary to the provisions of 15 U.S.C.S. § 1692g(a)(3), which simply states the notice must contain “a statement that unless the consumer, within thirty days after receipt of the notice, disputes the validity of the debt, or any portion thereof, the debt will be assumed to be valid by the debt collector.” The Ninth Circuit held affirmed denial of the debt collector’s motion to dismiss because the statute contained *no* requirement that the dispute be in writing, so by including such requirement in its communication,

the debt collector could be found liable for misrepresentation. The plain meaning of the statute was neither absurd in its results nor contrary to legislative intent. Thus, the collection notice in question violated Section 1692g insofar as it stated that disputes had to be made in writing. (*Camacho, supra*, 430 F.3d at 1082.) In fact, oral disputes are not only allowed, but do lead to some limited protections, such as precluding the debt collector from communicating the debtor's credit information to others without including the fact that the debt is in dispute. (*Ibid.*)

Accordingly, because the communication from Smith to Clifton was accurate and contained no misstatement, the Court sustains the demurrer to the first cause of action.

C. Second Cause of Action ("Misstatement of 30-Day Dispute Period")

Clifton alleges Smith violated 15 U.S.C. section 1692g based on the same "misleading" communications described above. As noted, the communications were not misleading. 15 U.S.C. section 1692g(b) provides that a debt collector must "cease collection of the debt until appropriate verification of the debt is sent," where the "customer notifies the debt collector in writing" that "the debt, or any portion thereof, is disputed" within the 30-day period referred to in subsection (a) of the statute. Subsection (a) describes the period referred to as thirty days after "receipt" of the initial debt collection notice. (15 U.S.C. § 1692g(a).)

Clifton does not argue he timely disputed the debt, and the facts pleaded indicate he did not. The thirty days expired before any written communication with Smith in late May, whether the thirty days is measured from the date of mailing to Clifton's previous address or from the date of receipt (February 28, 2025), as acknowledged in the previous version of his pleading and as noted in Judge Devine's order on the previous demurrer. Under the sham pleadings rule, omitting the reference to February in the SACC does not get around this issue.

The demurrer to this cause of action is sustained.

D. Third Cause of Action ("Lack of Itemization of Debts")

The Third Cause of Action alleges Smith should have provided itemized information as to each of the two accounts held by Clifton. Cross-defendants demur, arguing there is no legal obligation under 15 U.S.C. sections 1692e or 1692g that requires accounts to be separately itemized or broken into multiple validation statements when the debt involves one debtor and one creditor. Cross-defendants argue there is only one "debt." In his SACC, Clifton cites 12 C.F.R. section 1006.34, which discusses requirements for validation. Nothing therein, or in Sections 1692e or 1692g, prohibits a creditor from providing the sum of the amounts owed on different accounts, together constituting the "debt." The information on the initial notice sent by Smith (Exhibit A to SACC) contained adequate information.

The demurrer to the third cause of action is sustained.

E. Fourth through Seventh Causes of Action (Validation Concerns)

Clifton alleges several violations related to validation of the debt. Cross-defendants demur, asserting none of the alleged violations have merit. While certain constraints are placed on debt collectors *after* a debt is disputed in writing within thirty days (see 15 U.S.C. § 1692g (b)), that was not

the case here. Clifton did not dispute in writing within thirty days. As such, the statement that he “got the information eventually” was not misleading. (See SACC, Exhibit G.)

The initial communication provided to Clifton also provided the information necessary for such a communication pursuant to both 15 U.S.C. section 1692g(a) and 12 C.F.R. section 1006.34(a) (amount due, to whom, the contact information for Smith, etc.).

The demurrer to the fourth through seventh causes of action is sustained.

F. Eighth and Ninth Causes of Action (“Unfair” Means and Collection of “Unauthorized” Attorney Fees)

Because cross-defendants refused to accept an offer by Clifton, after the present case was filed, to make payments pursuant to a payment plan, he alleges they violated 15 U.S.C. § 1692f. Cross-defendants demur because none of the requirements in the statute require acceptance of a settlement offer. This is correct. Nothing in the statute require such acceptance. 15 U.S.C. section 1692f prohibits “unfair or unconscionable means” to collect a debt. Conduct specifically listed as “unfair or unconscionable means” includes collecting interest, fees, charges, or expenses incidental to the principal obligation “*unless such amount is expressly authorized by the agreement creating the debt or permitted by law.*” (Emphasis added.)

Clifton’s Member Agreement with Patelco specifically authorizes the credit union to recover “collection costs” and attorneys’ fees where a legal action is filed. (See Complaint, Ex. A [member agreement].) Accordingly, Clifton’s characterization of Patelco’s justified attempts to exercise its rights under the member agreement as “unfair” and “intimidation tactics” (“Argument 6” in Memorandum of Points and Authorities in Support of Opposition) fails. Clifton’s speculation as to what Smith may or may not have communicated to his client, or the communications between other attorneys and Patelco (“Argument 7”) is not admissible or relevant to the inquiry here.

The demurrer to the eighth and ninth causes of action is sustained.

G. Tenth Cause of Action (Failure to Cease Communications After Requested)

Clifton appears to allege a violation of 15 U.S.C. section 1692c(c) because he cites that provision, and states he requested Smith cease all communications on June 10, 2025. (See SACC, Exhibit J.) Crucially, as pointed out by the moving papers, Clifton simply alleges that further contact after June 10, 2025, *would* constitute a violation. No further communications are alleged.

The demurrer to the tenth cause of action is sustained.

Leave to Amend

Because Clifton argues he can state claims under the Rosenthal Act, which is more protective than the federal FDCPA, and because the cross-defendants have not fully addressed any potential claims under state law, the Court is not convinced no cause of action can be stated under “any theory,” the standard for sustaining a demurrer. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) As a result, Clifton has another opportunity to amend.

In any amended cross-complaint plaintiff must specifically allege the sections of the Rosenthal

Act he claims were violated. Cross-defendants, for their part, in any future demurrer, shall address each cause of action in the headings of their briefing, clearly labeled to mirror the claims as alleged in the cross-complaint in order to facilitate the Court's review.

7. 9:00 AM CASE NUMBER: C25-01243
CASE NAME: PATELCO CREDIT UNION VS. GREGORY M CLIFTON JR
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF THE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: PATELCO CREDIT UNION
TENTATIVE RULING:

DENIED as moot. See Line 6.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: COMPEL FURTHER VERIFIED RESPONSES HECTOR LOPEZ**
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Verified Responses on October 30, 2025 as relates to discovery propounded upon defendant Hector Lopez (the "Motion to Compel Further Responses re Defendant Lopez"). The Motion to Compel Further Responses re Defendant Lopez was set for hearing on March 16, 2026.

However, the motion was withdrawn by Plaintiff's Notice of Withdrawal filed March 3, 2026.

Disposition

The Court finds and rules as follows:

1. The Motion to Compel Further Responses re Defendant Lopez is DROPPED from calendar as WITHDRAWN.

9. 9:00 AM CASE NUMBER: C25-02735
CASE NAME: MELISA CALICA VS. FORD MOTOR COMPANY
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: FUTURE FORD OF CONCORD
TENTATIVE RULING:

Before the Court is Defendant Future Ford of Concord, LLC's Motion to Compel Arbitration and Stay Action ("Motion").

For the following reasons, Defendant's Motion to Compel Arbitration is **GRANTED**. Defendant's motion to stay is also **GRANTED**, and the action is **STAYED** pending the conclusion of the arbitration.

Factual Allegations and Procedural Background